



County Planning Commission (CPC)

Meeting: 07/01/26 09:00 AM

Department: Planning & Development Services
 Prepared By: Nancy Soto-Campos
 Director: Nicholas Hamm
 DCM:

Title: ZBA2026-0001/ZA2026-0024

Action:

Denial

Summary:

Pat Hauser appeals the Zoning Administrator's decision to approve a conditional use to allow a church and incidental facilities for a mosque, school and parking area with landscaping and fencing. This request was deferred from June 3, 2026, Board of Appeal hearing to allow time to set up a hybrid hearing with both virtual and in-person options for participation. Additional public comment and updated material from the appellant and the appellee are included as attachments listed below. New materials begin on page 9 of this report.

Attachments:

- BA2026-0001 Staff Report- july (PDF)
- Attachment 1-ZA Application_Redacted (PDF)
- Attachment 2-Letters of oposition-redacted_March April (PDF)
- Attachment 3- NODs_Redacted (PDF)
- Attachment 4-NOA and Appeal Application_Redacted (PDF)
- Attachment 5-Notification_Redacted (PDF)
- Attachment 6- Case Comments (PDF)
- Attachment 7-Zone Atlas (PDF)
- Attachment 8-Site Photos (PDF)
- Attachment 9- Presented at the April Hearing_Redacted (PDF)
- Attachment 10-Original Site Plan-applicant (PDF)
- Attachment 11-New Material from the Appellant for July,1 hearing (PDF)
- Attachment 12- New Material from the Appellee with Site Plan(PDF)
- Attachment 13- New Public Comment In Opposition (PDF)
- Attachment 14-New Public Comment Support (PDF)
- Attachment 15- New Public Comment Other (PDF)
- BA2026-0001_Additional Documents (PDF)

- BA2026-0001_Additional Materials From Applicant (PDF)
- BA2026-0001_Comments After Noon Deadline (PDF)

Staff Analysis Summary:

County Planning Commission
07/01/2026 9:00 AM

Nancy Soto-Campos Meeting

Pending

Bernalillo County Commission



Agenda Number:8
BA2026-0001/ ZA2026-0024
July 1, 2026
Staff Planner: Maggie Gould

Appellant: Pat Hauser

Applicant: Albuquerque Islamic Center

Location: 9600 2nd Street

Property Size: 3.9

Existing Zone: A-1

Proposed Zoning: No Change

Recommendation: Denial



Case Summary

Pat Hauser appeals the Zoning Administrator's decision to approve a conditional use to allow a church and incidental facilities for a mosque, school and parking area with landscaping and fencing. This request was deferred from June 3, 2026, Board of Appeal hearing to allow time to set up a hybrid hearing with both virtual and in-person options for participation. Additional public comment and updated material from the appellant and the appellee are included as attachments listed below. New materials begin on page 9 of this report.

Attachments

1. Application for Conditional Use (January 15, 2026)
2. ZA2026-0024 Written Letters of Opposition (March, April hearings)
3. Notice of Decision (March 11, April 8, 2026)
4. Notice of Appeal and Appeal App (May 13, 2026, April 28, 2026)
5. Evidence of Notification (February 19, 2026)
6. Agency Comments
7. Zone Atlas Page and maps
8. Site Photos
9. Items presented at the April ZA hearing
10. Original Applicant site plan (March 11, ZA hearing)
11. New material from Appellant for July 1, 2026
12. New material from Appellee (Original Applicant of Zoning Request)- including revised site plan, for July 1, 2026
13. New Public Comment in opposition received on or before June 16, 2026

Bernalillo County Departments and other agencies were asked to review this application and provide comments from March 2, 2026, to April 2, 2026.

Attachment: BA2026-0001 Staff Report- July (26992 : ZBA2026-0001/ZA2026-0024)

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- 14. New Public Comment in support received on or before June 16,2026
- 15. New Public Comment other received on or before June 16,2026

BA2026-0001
/ZA2026-0024

Pat Hauser appeals the Zoning Administrator's decision to approve a conditional use to allow a church and incidental facilities for a mosque and parking area with landscaping and fencing, Tract 208B, MRGCD Map 23, located at 9600 2nd St. NW, zoned A-1, containing approximately 3.90 acres.

BACKGROUND

The Property

The property is located near the intersection of Alameda Blvd and 2nd St approximately 0.27 miles west of the boundary of the City of Albuquerque, 0.71 miles north of the Village of Los Ranchos and 1.3 miles south of Sandia Pueblo. The sites to the north are developed with single-family residential uses, to the east the railroad tracks and the properties to south are a plant nursery, oil change facility and gas station, and dispensary. The property has existing buildings that will be demolished to make room for the proposed project.

Case History

The Zoning Administrator approved a Conditional Use for a church and incidental facilities for the property in 2024 (ZA2024-0074). The original applicant (the appellee for this request), thereafter "appellee," did not begin work on the project within the required 180-day period and the approval expired. The applicant reapplied for the use in February of 2026.

The Original Conditional Use Request

The appellee submitted the application on January 15, 2026, meeting the deadline for March 11, 2026, Zoning Administrator Hearing.

The appellee requested a Conditional Use to allow a church and incidental facilities and submitted a site plan and justification.

On February 27, 2026, zoning staff visited the site and found that the required sign was posted.

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The Zoning Administrator (ZA) Hearings

March 11 ZA Hearing

The appellee, Joseph Tahat, presented the case at the March 11, 2026 Zoning Administrator hearing. The appellee testified that the site was large enough for the proposed mosque would have sufficient parking and landscaping and open space. He also stated that the mosque would be a positive addition to the area and would provide a transition from the commercial uses along Alameda Blvd. Additionally, the mosque's busiest times are Friday around noon, and so traffic would not be during peak hours.

Julie Luna, a representative from Public Works, stated that a traffic review would be required at the time of building permit.

Three members of the public spoke at the hearing. Two neighbors stated that they had talked to the appellee and wanted to make sure that the weeds were cleaned from the site and that site stayed cleaned. They were not opposed to the request.

The neighboring property owner stated that he wanted to make sure there would be a wall for privacy between his property and the subject site. Staff and the appellee reviewed the site plan and explained that there would be a 6-foot-tall wall and landscaping along the north boundary. He also was concerned about lighting and was told that lighting would be downward facing cut-off fixtures.

The request was continued to the April 8, 2026 hearing to allow the appellee time to revise the landscaping plan to provide a larger buffer on the north side of the site adjacent to residential use, provide parking calculations for the possible future school and to reach out to any neighbors or interested parties.

April 8 ZA Hearing

The appellee revised the landscaping plan and added additional landscaping along the north side of the site and clarified the parking.

Public works stated that the parking was sufficient for the uses on site. Additionally, the building permit will include a traffic study and road improvements can be required as part of that process.

The appellee sent out an additional letter to neighboring property owners advising them of the request.

Speakers in opposition to the request cited concerns about traffic, noise and lighting. Stating that the intersection of Alameda Boulevard and 2nd street is congested, often requiring more than one cycle of the light. Additionally, that the proposed building would be out of character with the area.

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The appellee again stated that the proposed facility would improve the property and would act as buffer from Alameda Boulevard. He also stated that the hours for the main service on Friday could be somewhat flexible if it would improve traffic. Adding that at their University location hours were moved later to improve traffic function. He discussed that the school is an idea and they do not have the full number of students at this time.

The Decision

After the April 8, 2026, hearing, the Zoning Administrator approved the request based upon twelve (12) findings of fact and subject to Three (3) conditions of approval as indicated in the Notice of Decision dated April 14 ,2026 (Attachment 3). The appellee demonstrated they met the minimum criteria for approval of Conditional Use as described below.

The appellee has demonstrated that the site is large enough to accommodate the use, can be developed without adding traffic or hazards and will not be out of character for the area.

The Zoning Administrator added conditions prohibiting amplified sound, requiring the applicant to work with the County Public Works Department to reduce the paved area. The request is limited to the layout as shown on the approved site plan. (See attachment 3).

Findings:

1. This is a request for conditional use approval to allow a church and incidental facilities. The applicant seeks approval to construct a mosque and parking area with landscaping and fencing.
2. The site for the proposed use is adequate in size and shape to accommodate the use, as the property is 3.9 acres in area and provides sufficient area to accommodate site features required by ordinance. No variances were required for the request.
3. The site provides sufficient ingress and egress for vehicular access and can be developed in such a manner that undue traffic congestion or hazards will not be created. Off-street parking and access improvements by the applicant are expected to occur as well as approval from Bernalillo County Public Works through the County's building permit process.
4. Adjacent properties are of comparable uses, and the proposed use will have no adverse effect on the neighborhood or seriously conflict with the character of the area. The properties to the south are developed with an automotive service center, retail uses and a plant nursery. 2nd Street NW is developed with a mixture of uses.

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5. As an enumerated conditional use within the zoning ordinance, this type of activity is expected to occur from this zone.
6. The applicant intends to provide off street parking, landscaping, buffer landscaping and fencing in compliance with the requirements of the Comprehensive Zoning Ordinance of Bernalillo County, as shown on this site plan. There will be a six-foot-tall wall along the north side of the side adjacent to the residential use and landscaping along the second street and along the perimeter of the site to add a buffer.
7. There were several members of the public present at the hearing to testify on the request. Speakers in favor of the request stated that use was compatible with surrounding uses, would improve and maintain the property, the use could provide a buffer between the residential development to the north and the more commercial uses to the south. The applicant also stated that times of the main Friday service could be moved to accommodate traffic patterns.
8. Speakers in opposition to the request stated that the use would generate a large amount of traffic and that it would burden an already busy traffic system.
9. Staff from public works stated that a Traffic Impact Study would be required at the building permit phase of the project. Road improvements to offset any impacts from the project could be required. The main service occurs on Friday afternoon out of the peak hour traffic.
10. Conditions of approval are necessary to ensure orderly development of the site, as well as the protection of the public health, safety, and general welfare in conformity with the intended purpose of the Zoning Ordinance.
11. The site is within the Rural Area of the Comprehensive Plan.
12. Approval is limited to the requested use and does not waive any other requirement or imply any other approval of applicable Bernalillo County ordinances and/or regulations.

Conditions:

1. The applicant shall acquire all necessary construction and trade permits for proposed modifications to the subject site, including, but not limited to, a commercial County building permit. The proposed building shall be limited to the footprint indicated on the submitted site plan and consistent with the information submitted with this application. Additions to the site beyond this building square footage shall require consideration of a new conditional use permit application.
2. The applicant shall coordinate with the Public Works department to reduce the amount of asphalt and impervious surface on the site, such as only paving the

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drive aisles and accessible parking spaces and leaving a depressed drainage area for landscaping and using gravel or other pervious material for parking areas.

3. No amplified sound or loudspeakers are allowed outside of the proposed building.

THE APPEAL:

On April 28, 2026, Planning & Development Services received an application for appeal (Attachment 4) of the approval of ZA2026-0024 submitted by Pat Hauser. The appellants provided an application stating that the appeal of the decision was based on attached documents regarding church, daycare, and school. (See Attachment 1 and 2).

Applicable Regulations

Comprehensive Zoning Ordinance of Bernalillo County

Conditional use applications are reviewed by the Zoning Administrator and the criteria for the review is listed below under Section 24.A.2. Administration. Zoning Administrator. Powers and Duties:

i. Investigate all applications for conditional use permits authorized in this ordinance, and grant such applications if the Zoning Administrator finds:

- (1) That the site for the proposed use is adequate in size and shape to accommodate such use, and all yards, open spaces, walls and fences, parking, loading, landscaping, and other features required by this ordinance to adjust such use to the land use pattern in the neighborhood.
- (2) That the site for the proposed use can be developed in such manner that undue traffic congestion or hazards will not be created.
- (3) That the proposed use will have no adverse effect on the neighborhood or seriously conflict with the character of the area.
- (4) That any conditions are deemed necessary to protect the public health, safety, and general welfare. Such conditions may include requirements relative to:
 - (a) Open space and buffers.
 - (b) Walls and fences
 - (c) Surfacing of parking areas.
 - (d) Location of points of vehicular egress and ingress.
 - (e) Signs.
 - (f) Landscaping and maintenance thereof.
 - (g) Noise, vibration, odor, and health hazards.

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(h) Such other conditions as will make possible the development of the county in an orderly, efficient manner, and in conformity with the intended purpose of this ordinance.

Section 24. B. Board of Adjustment:

1. A Board of Adjustment is hereby created. Such Board shall consist of seven members, all of whom shall be residents of Bernalillo County. They shall be appointed by the Board of County Commissioners. Appointments shall be made for a term of three years. Vacancies shall be filled by appointment for the unexpired term only. Members of the board shall serve without compensation. A member of the Board of Adjustment may be removed by the affirmative action of three members of the Board of County Commissioners after being given a written statement of the charges against him, and a hearing, which shall be a public hearing if he so desires. Annually in January or more frequently at the pleasure of the Board of Adjustment, the Board of Adjustment shall select, by majority vote from its members, a chairman, a vice-chairman and any other officers which seem appropriate to the Board of Adjustment. Should a vacancy in these positions occur between regular elections, a special election shall be held to fill the remainder of the term.

2. The Board of Adjustment shall fix a reasonable and regular time and place for hearings, and it shall adopt such rules as may be necessary and proper to govern its proceedings. Such rules shall be in conformance with requirements of this ordinance. All meetings shall be open to the public. The Board of Adjustment shall keep minutes of its proceedings, including a record of the vote of each member on each action, and such minutes shall be public records.

3. Powers and Duties. The Board of Adjustment shall have the following powers:

- a. To hear and determine appeals where it is alleged there is error or abuse of discretion in any order, requirement, decision or determination made by the Zoning Administrator in the enforcement of the provisions of the ordinance.
- b. To hear and determine appeals from the rulings, decisions, and determinations of the Zoning Administrator granting or denying applications for variation from any requirements of this ordinance or granting or denying applications for conditional use permits authorized by this ordinance.

Agency Comments

This application was distributed to a variety of agencies for review and comments. No adverse comments were received.

Information Submitted for the Appeal

The appellant provided the necessary application for the appeal in a timely manner. The appellant offers the following as grounds for the appeal:

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The appellant states that the proposed use will have excessive traffic and that the intersection at 2nd street is already congested. The appellant states that the size of the proposed facility is out of character with the area. Additionally, the appellant is concerned about the lack of a grading and drainage plan, noise management plan, and fire safety plan.

The appellant cites resolution 116-86, the resolution for zone map amendments and special use permits which is not applicable in the case.

Analysis of Material

Conditional uses are expected to occur but go through the hearing process for review (see Applicable Regulations on page 5 of this report for the Conditional Use review criteria). In their review of the project, the following observations were made by the Zoning Administrator.

- **Size:** The property is 3.9 acres in size and the project is for a religious building, that also contains daycare and educational classroom spaces, in addition to the main worship areas, with a first-floor footprint of approximately 43,000 square feet and approximately 15,000 square feet of space on the second floor.
- **Site Requirements:** The proposed use meets the requirements for parking and has landscaping and fencing to buffer the use.
- **Surrounding Area:** The area is developed with a mix of uses, commercial, residential, and industrial uses.
- **Building Height:** The A-1 zone allows a building of up to 26 feet in height, except as regulated in Section 22-Supplementary Height and Area Regulations which exempts belfries, church spires, flag poles and similar features from height restrictions. The residentially zoned properties in the area have the same height allowances. This will ensure it is built in context with the surroundings.
- **Development Requirements:** Many of the appellant's concerns are things that will be addressed through the building permit process. A traffic study will be required with the building permit, and the County can require off-site road improvements if warranted by the study. A grading and drainage plan will also be part of the building permit and again the county can require site features necessary to address drainage. The conditions of approval direct the applicant to work with the Public Works department to minimize the paved surfaces, this could allow for more site drainage options. The Fire Marshall's office is part of the building permit process, that would occur after a zonal approval, and fire review will verify that the access, driveway widths, and site layout meet the requirements for fire safety. The Fire Marshall's office reviews the Zoning Administration cases and did not have any adverse comments on this case.
- **Noise:** Concerns regarding noise are addressed through a condition prohibiting amplified sound. The site is subject to provisions of the county's noise ordinance, which generally requires quiet hours between 10PM and 7AM.

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Update for July 1, 2026, Hearing

This case was deferred from the June 3, 2026, County Planning Commission (Board of Adjustment) hearing to allow time for the county to set up a virtual hearing option in addition to the in-person option.

Public Input

Staff received many comments regarding the request. Comments came from all over the city, but there is a concentration from the north valley.

Opposition to the request concerns traffic, size of the building, negative impacts on the character of the north valley, grading and drainage concerns and possible burdens on the area infrastructure.

Specific traffic concerns are the amount of traffic that the intersection of Alameda and 2nd street sees daily, with some residents stating that it takes multiple cycles of the light to make it through the intersection. Some commenters had concerns about the impact of future traffic from the M-1, Light Industrial Zoned property to north of the site on Group Hug Place, a road located approximately 450 feet to the north of the subject site, added to the traffic from the proposed use.

Specific size concerns expressed included the building being out scale with existing development in the area, the impact on local utilities, lighting, and water runoff from the building. Additionally, there was concern about the precedent it may set for future projects.

Support for the development cited religious freedom and included support from other religious organizations.

Other comments urged the commission to address concerns about size of the building and traffic impacts, not the religious background of the applicant.

Staff received comments regarding the appropriateness of the use itself, as a mosque. The county defines church as, "A building for public or private worship; or a body or organization of religious believers." The conditional use for church and related facilities applies to any religious body.

Sign posting

The required sign was posted for the Zoning Administration. When a case is appealed the applicant/appellee is required to leave the sign for the appeal hearing. Staff received an e-mail stating the sign was no longer posted on June 2nd, 2026. The appellee was issued a new sign, and it was posted timely for the July 1, 2026, hearing.

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The appellant requested a 60-day deferral to allow for time the appellant to research and submit independent engineering with regard to traffic. The appellant states that the traffic studies should occur with this request rather than as part of the building permit process. Staff believes that this is premature because the Planning Commission's decision could impact future development on the site; the commission could choose to grant or deny the appeal or could choose to modify the request.

The appellant also states that traffic should be evaluated on a cumulative basis, considering the impact of recently approved development in the area.

Update from the appellee

The appellee provided an updated site plan which shows a reduction of one classroom and shows parking calculated at 3 spaces per classroom and 1 space for each four seats in the main worship area. The total required parking for the school and place of worship would be 202 spaces. The site plan shows 235 parking spaces will be provided. The appellee also states that the school would not operate during the time of seasonal peak worship, however the provided parking would allow for both uses. The new site plan clarifies the second-floor classrooms and shows the area above the basketball court and a portion of the worship area open to the second floor.

CONCLUSION:

This request is an appeal of the Zoning Administrator's decision to grant a conditional use to allow a church and incidental facilities for a mosque, school and parking area with landscaping and fencing.

The Zoning Ordinance authorizes the Board of Adjustment to hear and determine appeals from the decisions of the Zoning Administrator where it is alleged there has been an error or abuse of discretion in a determination that has been rendered or where the decision is not supported by evidence of this matter. However, based on the information provided with the appeal, staff respectfully submits this matter to the BA with the following recommendation:

RECOMMENDATION:

Bernalillo County recommends denying the appeal of BA2026-0001 and upholding ZA2026-0024.

Maggie Gould


Zoning Administrator